



Queensland Government

ABN: 66 934 348 189

Register temporary transfer of quota or effort unit application

Fisheries Act 1994

Note: Only fill in the licence number and boat mark if a primary commercial fishing licence is being temporarily transferred with quota

Office use only

RN: _____ \$ _____

Licence number

Boat mark

*See note above

Transferor details

Surname or company name

Given name/s (leave blank if a company)

Postal address (this can be a post office box address)

Postcode

Residential/registered office address (not a post office box address)

Postcode

Home number

Work number

Fax number

Mobile number

Email address

Client reference number

Transferee details

To register the transfer of quota into a person's name/s, complete section 1 only

	Surname/s	Given name/s	Date of birth (See 'Notes')
Section 1			

To register the transfer of quota into a company name, complete section 2 only

Section 2	Company name (company name only, not a business name – see 'Notes')

Postal address (this can be a post office box address)

Postcode

Residential/registered office address (not a post office box address)

Postcode

Home number

Work number

Fax number

Mobile number

Email address

Client reference number

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Quota transfer details

Please indicate the number of whole units to be transferred.

Quota type	Quota name	Unused units
Crab	BC1-ITQ (Blue Swimmer Crab East Coast East)	
Crab	EC1-ITQ (Mud Crab East)	
Crab	GC1-ITQ (Mud Crab Gulf)	
Spanner Crab	C2-ITQ (Spanner Crab)	

ECIFF	GM5-ITQ (Grey Mackerel Region 5)	
ECIFF	WT5-ITQ (Sand Whiting Region 5)	
ECIFF	SCM5-ITQ (School Mackerel Region 5)	

Reef	CT Line Units (Coral Trout)	
Reef	RTE Line Units (Red Throat Emperor)	
Reef	OS Line Units (Other Species)	
Spanish Mackerel	SM Units (Spanish Mackerel)	

Trawl	Northern Trawl Effort Units	
Trawl	Central Trawl Effort Units	
Trawl	Southern Inshore Trawl Effort Units	
Trawl	Southern Offshore Trawl Region A Effort Units	
Trawl	Southern Offshore Trawl Region B Effort Units	
Trawl	Moreton Bay Trawl Effort Units	
Trawl – T4	T4-ITQ Units (Prescribed Whiting)	

Bech-de-mer	B1B-ITQ (Black Teatfish)	
Bech-de-mer	B1O-ITQ (Other Beche-de-mer)	
Bech-de-mer	B1W-ITQ (White Teatfish)	

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Coral	DO-ITQ (Other Coral)	
Coral	DS-ITQ (Specialty Coral)	
Coral	DS22-ITQ (Euphyllia glabrescens)	
Coral	DS23-ITQ (Fimbriaphyllia ancora)	
Coral	DS28-ITQ (Cycloseris cyclolites)	
Coral	DS36-ITQ (Acanthophyllia deshaysiana)	
Coral	DS39-ITQ (Homophyllia cf. australis)	
Coral	DS48-ITQ (Micromussa lordhowensis)	
Coral	DS74-ITQ (Trachyphyllia geoffroyi)	
Shell Grit	G-ITQ (Shell Grit)	
Trochus	J1-ITQ (Trochus)	
Tropical Rock Lobster	R-ITQ (Red Champagne Lobster and Tropical Rock Lobster)	

Note: transferee must hold (permanently or temporarily) an appropriately endorsed primary commercial fishing licence.

Is the transfer effective for the: current year next year

Quota temporary transfers will continue to the end of the quota year in which the temporary transfer occurs.

Applications to temporary transfer quota for the next quota year should only be lodged at the end of the current quota year.

Transferor declaration

I/we hereby:

- apply to register the temporary transfer of the above mentioned quota
- declare that the information in or accompanying the application is true and that I/we have complied with the requirements under the Act that relate to the above mentioned quota
- acknowledge that it is my/our responsibility to ensure annual payments (if applicable) are made.

(For companies, the signatures must be those of office bearers (directors, secretaries etc.) listed on a company extract current at the time of this transfer)

Transferor 1 Name & Signature

Name:

Signature:

Witness Name & Title

Witness Name:

Witness Title:

Witness Signature and Date

Witness Signature:

Date:

Transferor 2 Name & Signature

Name:

Signature:

Witness Name & Title

Witness Name:

Witness Title:

Witness Signature and Date

Witness Signature:

Date:

Transferor 3 Name & Signature

Name:

Signature:

Witness Name & Title

Witness Name:

Witness Title:

Witness Signature and Date

Witness Signature:

Date:

Transferee declaration

I/we hereby:

- apply to register the temporary transfer of the above mentioned quota
- declare that the information in or accompanying the application is true and that I/we have complied with the requirements under the Act that relate to the above mentioned quota.

Transferee 1 Name & Signature

Name:

Signature:

Witness Name & Title

Witness Name:

Witness Title:

Witness Signature and Date

Witness Signature:

Date:

Transferee 2 Name & Signature

Name:

Signature:

Witness Name & Title

Witness Name:

Witness Title:

Witness Signature and Date

Witness Signature:

Date:

Transferee 3 Name & Signature

Name:

Signature:

Witness Name & Title

Witness Name:

Witness Title:

Witness Signature and Date

Witness Signature:

Date:

Application Fee

- An application fee is payable for this application
- The application fees can be viewed on [Queensland commercial and charter fishing fees | Business Queensland](#)
- If paying by credit card, please write the name and phone number of the person who is paying below, and Licensing will contact the person by phone for payment

Name of person to contact for payment Contact phone number

Please do not write credit card details on this application

Forward application to: Fisheries Queensland, Department of Primary Industries, GPO Box 2764, Brisbane QLD 4001. For further information, Phone: 13 25 23 or **Email:** fisherieslicensing@dpi.qld.gov.au.

Processing Times: Complete applications will be processed in 1 to 3 business days.

Related applications

- ☐ Temporary transfer of licence by completion of a Register Temporary Transfer of Primary Commercial Fishing Licence Form FDU1454 (if applicable)

Requirement checklist

To ensure your application to register the transfer is not unduly delayed, please ensure the following requirements are satisfied:

- ☐ Payment of the fee to register the transfer of the quota
- ☐ Provision of a copy of the current company extract (see notes) for each company involved in the above transfer. You may provide a copy with your application, or a copy can be arranged on your behalf by contacting this office (fees apply).

Notes

The information in this checklist is to assist you in complying with the requirements of the *Fisheries Act 1994* that relate to the quota transfer to be registered. It should not be relied on for specific advice. It is not a precise statement of law and deals with matters that are subject to change. Complete copies of the *Fisheries Act 1994*, regulations and management plans can be accessed via the website <http://www.legislation.qld.gov.au/>

It is recommended you seek independent financial advice before investing in commercial fisheries in Queensland.

Witnesses to applicants signatures

The transfer must be executed as follows:

- For individuals, signatures can be witnessed by any other person, the witness must be 18 years or over.
- For a corporation, the form is signed in accordance with the *Corporations Act 2001*, s127 by: either two directors, or a director and a company secretary, or the sole director who is the sole secretary. Where a company has two or more directors a minimum of two directors must sign this application.
- Be aware that on registration of the transfer, all rights and liabilities attaching to the quota vest with the transferee.
- All applicants must be 18 years or over to hold an Authority.

Company Extract

A company extract is a specific document issued by the Australian Securities and Investment Commission which identifies the directors and secretaries of the company. Please note that a certificate of incorporation **is not a company extract**.

Transfer Duty (Previously Stamp Duty)

Queensland Transfer Duty may be payable on the registration of this transfer. Further details may be obtained from the Office of State Revenue on telephone 1300 300 734. The Commissioner of Stamp Duties may take action against either the vendor or purchaser when recovering unpaid duty.

Privacy Disclaimer: The Department of Primary Industries is collecting the information on this form to assess your application to register temporary transfer of quota. This information is authorised by section 65 of the Fisheries Act 1994. This information will only be accessed by authorised employees within the department. Some information collected on this form is made available to the public in the Register of Authorities under Section 73 of the Fisheries Act 1994 and Section 73 of the Fisheries (General) Regulation 2019. Please be aware that the postal address you provide may be released under a search. You must also provide, for an individual, a residential address, or for a corporation, a registered office address for the purpose of giving notices under fisheries legislation. The residential/registered office address will not be made available under a search of the Register unless it is also the postal address. Your information will not be disclosed to any other parties unless authorised or required by law.